

TENTATIVE RULINGS for LAW and MOTION

June 18, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Thirteen	(530) 406-6777
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Augustus Aetius v. FCA US, LLC**
 Case No. CV2024-2843

Hearing Date: **June 18, 2026** **Department Thirteen** **9:00 a.m.**

Defendant FCA US, LLC's motion to compel plaintiff's responses to request for production of documents and request for sanctions is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 2031.300.) Based on defendant's proof of service, it failed to serve plaintiff Augustus Aetius at the correct email address. (See Cal. Rules of Court, rule 2.251 (c)(4); see also Code Civ. Proc., § 1013b, subd. (b); Plaintiff's consent to electronic service [filed June 11, 2025], ¶ 2.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **HerbalShotz LLC et al. v. Vaidya et al.**
 Case No. CV2025-3516

Hearing Date: **June 18, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, plaintiff HerbalShotz LLC's unopposed motion to compel compliance with subpoena for production of business records to nonparty Arman Estates, LLC is **CONTINUED** to **July 10, 2026**, at 9:00 a.m. in Department Fourteen.

TENTATIVE RULING

Case: Surebuilt Construction, Inc. v. Thoele
Case No. CV2025-1723

Hearing Date: June 18, 2026 **Department Thirteen** **9:00 a.m.**

The Court, in its discretion, considers cross-complainants Nick Thoele and Katherine Marin's untimely opposition. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers"].)

Cross-defendants Surebuilt Construction, Inc. and Mario F. Gonzalez's demurrer to the entire cross-complaint as to cross-defendant Mario F. Gonzalez is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Cross-defendants have failed to establish that the cross-complaint does not allege sufficient facts to maintain the asserted causes of action against cross-defendant Mario F. Gonzalez. (*Frances T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 503-504; Cross-complaint, ¶¶ 2-4, 9-11, 15-16, & 37-40.)

Cross-defendants' demurrer as to the second cause of action (negligence) in the cross-complaint is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) Cross-complainants concede that the demurrer should be sustained as to this cause of action. (Opposition, p. 3.)

Cross-defendants' demurrer as to the third cause of action (cancellation of instrument) in the cross-complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subds. (e), (f).) Cross-defendants have failed to establish that the cross-complaint does not state facts sufficient for this cause of action. (Civ. Code, § 3412; Cross-complaint, ¶¶ 14-16 & 26-31.) Cross-defendants provide no argument as to how this cause of action is uncertain. (See *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Cross-defendants' demurrer as to the fourth cause of action (declaratory relief) in the cross-complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Cross-defendants have failed to establish that the cross-complaint does not state facts sufficient for this cause of action. (*California Ins. Guarantee Assn. v. Superior Court* (1991) 231 Cal.App.3d 1617, 1623-1624; Cross-complaint, ¶¶ 33-35.)

Cross-defendants' demurrer as to the fifth cause of action (intentional misrepresentation) in the cross-complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subds. (e), (f).) Cross-defendants have failed to establish that the cross-complaint does not state facts sufficient for this cause of action. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 & 645; Cross-complaint, ¶¶ 8-10, 14-16, & 36-43.) Cross-defendants provide no argument as to how this cause of action is uncertain. (See *Khoury, supra*, 14 Cal.App.4th at p. 616.)

Cross-defendants' motion to strike is **DENIED**. (Civ. Code, §§ 435, 436.) As to their request to strike punitive damages from cross-complainant's prayer, cross-defendants have failed to show that the cross-complaint does not support a request for punitive damages, given that the Court is overruling their demurrer as to the fifth cause of action (intentional misrepresentation). (Civ. Code, § 3294; Cross-complaint, ¶¶ 36-43.) As to their request to strike attorney's fees and other

improper or irrelevant matters, cross-defendants failed to “quote in full the portions sought to be stricken” or state the paragraph, cause of action, count, or defense sought to be stricken in their notice of motion. (Cal. Rules of Court, rule 3.1322(a).)

Cross-defendants shall answer the cross-complaint by no later than **June 29, 2026**. (Cal. Rules of Court, rule 3.1320(j).)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Vaidya v. Dhesi et al.**
 Case No. CV2026-0221

Hearing Date: **June 18, 2026** **Department Fourteen** **9:00 a.m.**

Demurrer

On the Court's own motion, defendants Rajpreet Dhesi, Anita Dhesi, Keerut Dhesi, and Blueberry Trading LLC's demurrer to complaint is **CONTINUED** to **July 10, 2026**, at 9:00 a.m. in Department Fourteen.

Motions to quash

On the Court's own motion, defendants Rajpreet Dhesi and Anita Dhesi's motion to quash deposition subpoena for production of business records and Blueberry Trading LLC's motion to quash deposition subpoena for production of business records are **CONTINUED** to **July 10, 2026**, at 9:00 a.m. in Department Fourteen.